



Licence to reproduce Public Sector Information

Amateur Radio Callbook Licence (PSI 1)

Application Form

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Section 1

Re-use of Public Sector Information Regulations 2000

The Re-use of Public Sector Information Regulations 2005 ('PSI') implement a European Commission Directive that encourages the re-use of information supplied by a public body for purposes other than they were originally intended. Whilst access legislations such as Freedom of Information and Environmental Information Regulations seek to promote transparency and accountability in public authorities, the PSI recognise that public information has a value and encourages the commercial exploitation of this. The regulations apply to any recorded information in which the public authority holds the copyright.

Ofcom complies with the Regulations on the Re-use of Public Section Information and we encourage the re-use of the information that we produce.

Our approach is to be open and transparent and to treat all applications to re-use in a fair and non-discriminatory way.

If you wish to re-use information that we produce that please complete the application form below and return it to us. A copy of the terms of the licence has been included with this form. Please note that the information gathered by Ofcom is only for the purposes of producing a call sign book, and will not be licensed for any other purpose.

In accordance with PSI Regulations we will aim to respond to all applications within twenty working days.

Section 2

Application for PSI 1 Licence

Name:..... Title: Miss/Mrs/Ms/Mr.....

Job Title (If appropriate):

Name of Organisation:

Address.....

.....

.....

.....

Postcode:

Telephone:

Email address:

This is an application to re-use information consisting of:

- 1. Radio Amateur Call Signs
- 2. First name/initials and surname
- 3. Mailing address

Please indicate how you wish to re-use the information. (For example on an intranet site, to Photocopy for in-house training papers, for commercial publication etc):

.....
.....
.....
.....
.....

If you are planning to publish the information, please provide details such as publication title, website address, name of publisher etc:

.....
.....
.....
.....

Please send completed forms to information.requests@ofcom.org.uk or to

Information Requests
Ofcom
Riverside House
2a Southwark Bridge Road
London
SE1 9HA

Declaration

I declare that all details given in this application form are correct.

Ofcom is committed to protecting your privacy and to processing your personal information in a manner which meets the requirements of the Data Protection Act 1998. See Ofcom’s website for our data protection statement at www.ofcom.org.uk

The information on this form is being collected by Ofcom and is to be processed for the purpose of issuing licence under the Regulations on the Re-use of Public Sector Information.

This information may be provided by Ofcom to law enforcement agencies (such as the police and other third parties) for crime and taxation purposes and the discharging of functions relating to regulatory activities, but will not be shared with other parties.

If you have any questions about this statement, please contact

Information Requests
Ofcom
Riverside House
2a Southwark Bridge Road
London SE1 9HA

I confirm that I have read and understood the Terms and Conditions of PSI Licence 1 and agree to be bound by its terms and conditions. I confirm that all information provided in this application form is correct and true to the best of my knowledge.

Signature of applicant

.....

CLICK-USE LICENCE

Licence to reproduce Public Sector Information

1. Introduction

- 1.1 This Licence sets out how End-users throughout the world may reproduce the Material produced by *The Office of Communications* ('Ofcom').
- 1.2 This Licence is an offer of Licence terms and conditions from Ofcom. This Licence explains:
- which Material is covered by the Licence; and,
 - how the licensing arrangements will operate.

2. Purpose and scope of this Licence

- 2.1 The main purpose of this Licence is to provide End-users with a quick and effective way to reproduce the Material.
- 2.2 This Licence does not cover information which is exempt from disclosure to the public under Freedom of Information legislation (Freedom of Information Act 2000).

3. Definitions

In this Licence, the terms below have the following meanings:

Application:	your application for a licence to reproduce the Material. Applications can be made online.
End-user:	users and subscribers who access electronic or digital products, publications and services.
End-user Licence:	a licence issued by publishers of electronic products and publications setting out the terms of use to End-users.
Intellectual Property Rights:	includes copyright, patents, database rights and rights in trade marks, designs, know-how, domain names and confidential information (whether registered or unregistered); applications for, and the right to apply for, registration for any of these rights; and all other intellectual property rights and equivalent or similar forms of protection existing anywhere in the world;
Licence:	this offer of terms, the completed Application and Annex A.

Material:	as detailed at Annex A.
Official Source:	any publication, product or information service that has been made available to the public by us or on our behalf. This includes our official website.
Our, us and we:	Ofcom
You, your:	any person, organisation or company who wishes to reproduce the Material covered by this Licence.

4. How can I obtain a Licence?

- 4.1 Please read the terms and conditions of this Licence first. Then either complete the Application at <http://www.ofcom.org.uk/radiocomms/ifi/licensing/classes/amateur/> or request a hard copy from *The Office of Communications, Information Requests, 2a Southwark Bridge Road, London SE1 9HA*
- 4.2 Once we have received your signed Application, you will receive the following details from us:
- your unique Licence number; and
 - confirmation of the start date of your Licence.

If you apply online you will receive automatic confirmation of these details by return. If you send your form as a hard copy you will be sent the confirmation details within two working days.

- 4.3 We may list the names and addresses of all Licence holders on our website because we want:
- to be open and transparent about who has a Licence; and
 - to help applicants, particularly those from large organisations, to check whether they already have a Licence.

We will not use this information for marketing or publicity purposes. If you are a private individual please let us know whether you **do not** wish to have your details listed.

5. Material covered by this Licence

Ofcom retains all Intellectual Property Rights in the Material however so arising. The Material may only be reproduced under this Licence for the purposes described at paragraph 7 under the terms of this Licence.

6. How the Material may be reproduced

In this Licence, to *reproduce* means the following non-exclusive rights throughout the world.

- 6.1 publishing the Material in any medium for the purposes of providing a callbook. This includes featuring the Material on websites that can be accessed via the world-wide web or via an internal electronic network or on an intranet;
- 6.2 authorising users and subscribers, who use your electronic or digital products to access the Material by means of an End-user Licence. Such End-user Licence will only allow users and subscribers to download the material to screen and printer for their own use. **It does not otherwise allow you to authorise the reproduction of the Material;**
- 6.3 translating the Material from the English into other languages provided that the translations are accurate and made by a competent translator;
- 6.4 copying the Material for non-commercial research or private study;
- 6.5 converting to braille and other formats for people who are visually impaired;

- 6.6 copying by libraries;
- 6.7 copying for the purposes of news reporting. This includes broadcasting on radio and television;
- 6.8 photocopying or scanning the Material from an Official Source.

7. Period

This Licence is for the period one year from the date of your Application.

8. Obtaining the Material

- 8.1 In most cases, you will be able to reproduce the Material from the Official Source as long as you are careful not to infringe the copyright of another party. You may reproduce the Material by whatever means you choose, including scanning, downloading from our website or by re-keying.
- 8.2 We may be able to supply the Material you want to reproduce in alternative formats, such as digital. Please contact us at Information.Requests@ofcom.org.uk with details of the format you would prefer. We will tell you whether the Material is available in that format and what the supply costs will be.

9. Charging

Subject to paragraph 8.2 above, you can, reproduce the Material covered by this Licence direct from an Official Source without any charge.

10. Our obligations

We aim to:

- confirm receipt of the Application promptly;
- quickly put right any difficulties or answer any queries which you may have;
- handle all Licences in a way that is fair and consistent;
- give you details of any changes to this Licence.
- if you are dissatisfied with the standard of service you receive from us, you can make a formal complaint. We will deal with it by following our complaints procedure. You can find this on our website at <http://www.ofcom.org.uk/about/account/complaints/> or please e-mail us at Information.Requests@ofcom.org.uk and we will send you details.

11. Your obligations

You must:

- provide full and accurate information on your Application and in the context of the Licence, and to let us know if any of this information changes;
- let us know if you want to end the Licence;
- reproduce the Material accurately from the current Official Source. In cases where you want to reproduce Material that has been superseded you should make it clear that a more up to date version is available;
- identify the source of the Material and feature the following copyright statement if you publish the Material:

- not disclose the Material to any third party otherwise than under this Licence;
- not use the Material for the principal purpose of advertising or promoting a particular product or service, or in a way which could imply endorsement by us or generally in a manner which is likely to mislead others;
- not reproduce our logos;
- allow us to inspect, on request, copies of any works that include the Material to check that you have kept to the terms of this Licence;
- agree to indemnify Ofcom on demand against all losses, costs (including reasonable legal costs), damages, fines, charges, expenses or other liabilities incurred by Ofcom and arising from or incurred by reason of any claim or action brought against Ofcom by third parties under this Licence and the provision of the Material to you.
- send us, if we ask for it, a complimentary copy and/or subscription of any product or publication that you produce that includes the Material. In the case of electronic products and services you should provide the appropriate End-user Licence. We shall notify you of the address where they should be sent;
- not use the Material in ways which are knowingly or potentially libellous or slanderous of individuals, companies or organisations;
- send us, if we ask for it, a copy of your standard End-user Licence.

12. Data Protection

- 12.1 In this Condition 12, references to **Personal Data, Data Processor, process** (and any derivatives thereof) shall have the meaning given to those terms in the UK Data Protection Act 1998.
- 12.2 You shall:
- 12.2.1 Only undertake processing of Personal Data to the extent reasonably required to enable you to reproduce the Material for the purposes described at paragraph 6 above, and shall not further process Personal Data in a manner that is incompatible with these purposes
- 12.2.2 Otherwise, not disclose Personal Data to any third parties other than:
- (a) your employees, agents and permitted subcontractors; or
 - (b) to the extent required by any applicable laws, enactments, regulations which are in force.
- 12.3 The Licensee shall give written notice to Ofcom of any requirement to disclose Personal Data under condition 12.2.2 above promptly after becoming aware of that requirement.
- 12.4 Ofcom may request a detailed written description of the technical and organisational measures employed by you for the processing of Personal Data. On receipt of a request, which must include a description of Ofcom's reasonable requirements, you shall deliver a written report to Ofcom in sufficient detail to enable Ofcom to determine whether or not any applicable Personal Data is being or has been processed in compliance with the Data Protection Act.
- 12.5 You may not transfer any Personal Data outside the European Economic Area without the prior written consent of Ofcom.

13. Changes to the terms of this Licence

We have the right to change the terms of this Licence. Your existing Licence will be honoured for the time it has left to run, unless you wish to terminate it and take out a new Licence on the revised terms.

14. Ending the Licence

- 14.1 We reserve the right to end this Licence if there is a significant breach of any of the terms and you do not put this right within 60 days of our telling you in writing or by e-mail.
- 14.2 You have the right to end the Licence at any time by e-mail or in writing.

15. Assignment

This Licence may not be assigned.

16. Disclaimer

- 16.1 Your use of the Material under this Licence is entirely at your own risk. While every effort is made to ensure that the information provided to you is accurate, no guarantees for the currency or accuracy of information are made.
- 16.2 The Material and related services is provided 'as is'. It is provided without any representation or endorsement made and without warranty of any kind, whether express or implied, including but not limited to the implied warranties of satisfactory quality, fitness for a particular purpose, non-infringement, compatibility, security and accuracy.
- 16.3 Ofcom does not accept any responsibility for any loss, disruption or damage to your data or your computer system which may occur whilst using the Material provided by Ofcom.
- 16.4 In no event will Ofcom be liable for any loss or damage including, without limitation, indirect or consequential loss or damage, or any loss or damages whatsoever arising from use of loss of use of, data or profits arising out of or in connection with the use of information provided by Ofcom.

17. Rights of Third Parties

It is not intended that this Licence, either expressly or by implication, confers any benefit on any person who is not a party to the Contract and accordingly the Contracts (Rights of Third Parties) Act 1999 shall not apply.

18. Governing law

This Licence is made under the laws of England and Wales and comes under the exclusive jurisdiction of the courts of England and Wales.

ANNEX A

List details of the material covered by this licence.

- 1. Radio Amateur Call Sign*
- 2. First name/initials and surname*
- 3. Mailing address*